

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

May 12, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna and Dr. Rinne. ABSENT: Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Ms. Broyles and Mr. Allen, Agenda Item #13 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 28, 2014. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to provide for an Alternative Compliance for reduced residential minimum front setback. Boyd Wiggam, Wyoming Liberty Group, expressed concerns with the proposed ordinance relative to wording in Section 4; questioned whether new in-fill developments would be allowed to match what was similar in the area or held to standards for the majority of houses previously built in a neighborhood, and suggested an amendment to Section 4 for clarification be considered. Donald James Howard Perrott Macneil commented in opposition to development in general. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Comment followed on the proposed ordinance, as written, providing flexibility and meeting the desired purpose of the amendment to the UDC. Motion carried. Voting "yes" -- all members of the governing body present. (#4024)

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste dump rates, as recommended by the Board of Public Utilities -- referred to Finance Committee (sponsor - Mr. Brown).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed-Use Business Emphasis for Lot 1, Block 1, Tak Subdivision and Lot 1, Block 1, Dan Subdivision, Cheyenne, Wyoming (located north of and adjacent to W. Lincolnway, between Westland Road and I-25) -- referred to Public Services Committee (sponsor - Mr. Shanor).

ORDINANCE - Amending Sections 2.76.020(A) and (B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the code of the City of Cheyenne, Wyoming -- referred to Public Services Committee (sponsor - Dr. Rinne).

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation all for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015 -- referred to Committee of the Whole (sponsor - Mr. Brown).

ORDINANCE - Amending the City of Cheyenne's Solid Waste fee schedule established by Ordinance No. 4013 -- referred to Finance Committee (sponsor - Mr. Brown).

RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 (postponed from 04/28/14). Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute dated May 2, 2014, seconded by Ms. Broyles. It was advised the amendment changes the funding source for some line items from impact assistance funds to unanticipated additional general revenue, and that the total dollar amount remained the same. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#5585)

RESOLUTION - Rescinding Resolution No. 3451 and establishing a new schedule of fees, charges and expenses as required by Section 1.3.7. of the Cheyenne Unified Development Code. Matt Ashby, Planning Services Director, referenced a staff memo dated May 5, 2014 that had been submitted to governing body members and provided an overview of the information contained in the memo affiliated with clarifications; proposed preliminary and final plat costs; utilizing a flat rate vs. a flat rate plus a per lot cost for platting activities, and implementing fee increases on a "phased in" approach. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from Committee. Mr. Brown moved to adopt, seconded by Mr. Allen. Discussion topics included: Previously approved action to acquire a Development Impact Fee Study prepared by a consultant and anticipated time frame for receipt of the information; Chamber of Commerce's proposal to conduct and pay for a study relative to the proposed resolution topics and anticipated time frame for receipt; participation by City staff during the Chamber's process of compiling its study; concern that the Chamber's estimated 90 day time frame in which to submit its study results may not be sufficient to cover the comprehensive areas to be involved; various subjects that should be objectively considered in the Chamber's study (such as acquisition of water rights and infrastructure) involving costs of doing business within the City; justifiable fee increases and/or

decreases, and governing body's authority pertaining to recommendations that may be presented based upon the Chamber's study. During discussion and upon inquiry, Mr. Ashby provided information concerning the Development Impact Fee Study being conducted by the consultant, and Dan White, City Attorney, advised as a general proposition the governing body is not bound by recommendations of any study that is presented to them. Dale Steenbergen, Greater Cheyenne Chamber of Commerce, provided information in response to inquiries and advised the Chamber's study approach would be a comprehensive review of fees affiliated with the cost to develop within the community. He stated a comprehensive study may take longer than 90 days, that a joint ad hoc task force could serve as the study work group, and that updates to the governing body during the process would be through reports submitted twice a month. He confirmed designated City staff input would be involved during the study process as well as accepting input from the community, and that the goal was that the business community would not be left out of the discussions. Mr. Steenbergen commented on economic development, costs of development, and paying for infrastructure on a long-term basis. Mayor Kaysen provided information on meetings of the governing body during the month of August pursuant to the Chamber's estimated 90 day time frame in which to submit the study or a summary status report, and possibility of a City Council work session. Mr. Steenbergen commented that perhaps a meeting with City Council members should be held soon to understand the structure and topics to be included in the study. Motion to adopt failed. Voting "no" -- all members of the governing body present.

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant funding for the City's Mobile D.U.I. Command Post. Motion (per Consent Agenda) carried. (#5586)

RESOLUTION - Granting, with conditions, the petition of Lummis Livestock, LLC, for the expansion of the boundaries of the South Cheyenne Water & Sewer District to provide water and sewer services to users within Phase I of the Sweetgrass Development. Mr. Allen moved to adopt, seconded by Mr. Brown. Mr. Allen moved to withdraw the Resolution from the agenda at the request of staff and the petitioner, seconded by Ms. Broyles. Motion to withdraw the item carried. Voting "yes" -- all members of the governing body present.

[CA] RESOLUTION - Approving the budget of the Downtown Development Authority/Main Street for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Pronghorn Crossing, a replat of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, west of Ridge Road) -- referred to Public Services Committee (sponsor - Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Platte Valley Subdivision, a portion of the W<sup>1</sup>/<sub>2</sub> of Section 28, T.14N., R.65W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to I-80 Service Road, west of Archer Parkway) -- referred to Public Services Committee (sponsor - Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign County Final Plat for Gould Subdivision, 2<sup>nd</sup> Filing, a replat of Lot 10, Block 1, Gould Subdivision, Laramie County, Wyoming (located at the northwest corner of the intersection of Harmon Avenue and Victoria Drive) -- referred to Public Services Committee (sponsor - Mr. Shanor).

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - A Joint Resolution Certifying that the Governing Bodies of the City of Cheyenne, the Town of Albin, the Town of Burns, the Town of Pine Bluffs, and the Board of County Commissioners of Laramie County, Wyoming, support proposed modifications to Chapter 32 of the Rules and Regulations of the State Loan and Investment Board for the Capital Improvement Projects-Countywide Consensus Program -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing the Cheyenne Police Department to apply for the Electronic Citation Implementation Grant through the Wyoming Supreme Court (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to enter into a Memorandum of Understanding with the Board of County Commissioners of Laramie County, Wyoming, to submit a joint application for a grant award under the Edward Byrne Memorial Justice Assistance Grant Program -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Preliminary Plat for US 30 Business Plaza, a replat of Lots 1 and 5-8, Block 2, all of Block 3, all of Block 4, Countryside Addition and a portion of the NE¼ of Section 26, T.14N., R.66W., 6<sup>th</sup> P.M., Cheyenne, Wyoming, to be known as US 30 Business Plaza (located at the southwest corner of the intersection of US Highway 30 and Whitney Road) -- referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No. 1 to provide transportation services for the City's Summer Recreation Camp Program. Motion (per Consent Agenda) carried. (#6163)

[CA] Memorandum of Understanding between Laramie County, City of Cheyenne, Cheyenne Board of Public Utilities, Cheyenne/Laramie County Board of Health and Cheyenne Regional Airport Board regarding the management of the Environmental Systems Research Institute (ESRI) Enterprise License for the Cooperative Geographic Information Systems (GIS) program, and authorizing the City of Cheyenne as a software user participant in the Multi-Jurisdictional Licensing Agreement. Motion (per Consent Agenda) carried. (#6164)

[CA] Contract between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives, regarding the provision of Diversion Services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Goat Green, LLC, for vegetation management along Dry Creek (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne on behalf of the Metropolitan Planning Organization and Cambridge Systematics, Inc., for the Cheyenne Transportation Safety Management Plan update (National Highway Transportation Safety Administration, Highway Safety Grant through Wyoming Department of Transportation) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Delta Dental of Wyoming for dental coverage for full time city employees -- referred to Finance Committee.

[CA] Business Ready Community-Business Committed Loan and Security Agreement between the City of Cheyenne and the Wyoming Business Council to provide \$3,000,000 in loan funds to assist in the construction of a rail spur, switching, and related rail facilities to serve the Swan Ranch Rail Park, Cheyenne, Wyoming, and including financing statements and collateral assignments necessary to close the loan transaction -- referred to Finance Committee.

[CA] Promissory Note under which the City of Cheyenne shall be obligated to pay to the Wyoming Business Council the principal sum of \$3,000,000, with interest as specified in said note, from special funds and collateral assets pledged to the City of Cheyenne by Granite Peak Development, LLC, and its principals and related business entities, pursuant to the May 2, 2014 Amended and Restated Project Development and Administration Agreement relating to the construction of a rail spur, switching, and related rail facilities to serve the Swan Ranch Rail Park, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5932 between the City of Cheyenne, Public Works Department, and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion and closure of existing cells (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$149,483.00). (#5932)

[CA] Contract Modification No. 1 to Contract No. 5994 between the City of Cheyenne, Engineering Department, and Simon Contractors for elevation changes to the box culvert along 23<sup>rd</sup> Street for the Snyder Street Reconstruction Project (2003-2006, 2007-2010, 2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-21-14 for furnishing ammunition for the Cheyenne Police Department. Motion (per Consent Agenda) carried (accept bid from Accuracy, Inc. d/b/a Ultramax Ammunition, Rapid City, South Dakota, amount not to exceed \$40,397.00, and Skaggs Uniform and Equipment, Salt Lake City, Utah, amount not to exceed \$618.75; for a total bid amount of \$41,015.75).

[CA] Consideration of Bid #R-15-14 for furnishing three 2014-2015 solid waste transfer trailers for City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (accept bid from Ameri-Tech Equipment Company, Casper, Wyoming; amount not to exceed \$218,288.00).

[CA] Consideration of Bid #R-16-14 for furnishing three new 2014-2015 cab and chassis units with automated refuse collection packer body with dual arm side loaders for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne, Wyoming; amount not to exceed \$887,413.00).

[CA] Consideration of Bid #M-17-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corporation and Subsidiary of Cheyenne, Wyoming, for the Converse Softball Complex Project (State & Local Grants, Parks Facilities). Motion (per Consent Agenda) carried (amount not to exceed \$1,626,575.95). (#6165)

[CA] Consideration of Bid #M-21-14 for a contract between the City of Cheyenne, Engineering Department, and Aztec Construction Company, Inc., of Cheyenne, Wyoming, for the Norris Detention Pond Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$449,337.80). (#6166)

Consideration of Bid #R-23-14 for furnishing 15 new computers and operating systems for the City of Cheyenne Police Department (2011-2014 1% Sales Tax). Mr. Brown moved to reject all bids, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Consideration of Bid #R-17-14 for furnishing two new 2014-2015 cab and chassis units with rear load sanitation refuse collection bodies, 25 cubic yard with tippers for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Consideration of Bid #R-18-14 for furnishing one new 2014-2015 roll-off truck for the City of Cheyenne Sanitation Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Consideration of Bid #M-23-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Recco, Inc., d/b/a Five-R Company, Cheyenne, Wyoming, for the renovation and expansion of the Cheyenne Botanic Gardens Conservatory Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-22-14 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation and Subsidiary of Cheyenne, Wyoming, for the Logan Avenue Reconstruction Project (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

Appointment of Coltan G. Harrington to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Brown moved to approve, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Ronn J. Jeffrey as Judge of the Juvenile Court. Ms. Broyles moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 14, 2014 Wyoming Association of Municipalities Business Meeting. Motion (per

Consent Agenda) carried (Mayor Richard L. Kaysen, Official Voting Delegate; City Clerk Carol Intlekofer, Alternate Delegate).

Announcement was made of the Appointment of Barry Sims to the Visit Cheyenne Board to be confirmed May 27, 2014.

Announcement was made of the Re-Appointments of Amiee Reese and Scott French to the Visit Cheyenne Board, and Larry Atwell to the Cheyenne/Laramie County Economic Development Joint Powers Board, to be confirmed May 27, 2014.

Announcement was made that due to the Memorial Day Holiday on Monday, May 26, 2014, the regularly scheduled meeting of the Governing Body will instead be held on Tuesday, May 27, 2014 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held May 27, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments regarding the intent of the City of Cheyenne to submit an application to the Wyoming Business Council's Business Ready Community, Community Readiness Grant Program, for the Christensen Railroad Overpass and Corridor Project.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:48 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
May 22, 2014